

Paijat Paper Mills Ltd. v. PVVNL

High Court of Judicature at Allahabad · Division Bench · 14 November 2018 · Writ-C No. 22449 of 2008 · **Writ dismissed following Dev Prayag on additional security**

HEADNOTE

Writ against an additional-security demand, and a vires attack on Supply Code clause 4.20(1) vis-à-vis Electricity Act section 47(5), dismissed in terms of Dev Prayag Paper Mill (Writ-C No. 30898 of 2016, 21.3.2017).

FACTUAL SUMMARY

Paijat Paper Mills Ltd. was required by Paschimanchal Vidyut Vitran Nigam Ltd. to pay additional security for electricity supply, failing which action would follow in accordance with law. The mill challenged that demand and also assailed clause (1) of para 4.20 of the Electricity Supply Code, 2005, so far as it lets the distribution licensee give the consumer a choice to opt, as ultra vires section 47(5) of the Electricity Act, 2003. Counsel told the Court that identical petitions had already been dismissed.

HOLDING-UNITS

INTERPLAY · UP-2005::4.20

additional security / 4.20(1) consumer option

HOLDING

A writ challenging an additional-security demand and clause (1) of para 4.20 of the Electricity Supply Code, 2005 as ultra vires section 47(5) of the Electricity Act, 2003 is dismissed in terms of the Division Bench judgment dated 21.3.2017 in Writ-C No. 30898 of 2016 (M/s Dev Prayag Paper Mill (Pvt.) v. State of U.P.). ¶ 1

PRINCIPLE TAGS

additional-security Writ against an additional-security demand, and a vires attack on Supply Code clause 4.20(1) vis-à-vis Electricity Act section 47(5), dismissed in terms of Dev Prayag Paper Mill (Writ-C No. 30898 of 2016, 21.3.2017). ¶ 1

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>M/s Dev Prayag Paper Mill (Pvt.) v. State of U.P.</i> Writ-C No. 30898 of 2016			1	Referred